

Federal Maritime Commission Washington DC

Office of Administrative Law Judges

Mohammad Rana,	}	
Complainant	}	Docket No. 19-03
	}	
V.	}	
	}	
Michelle Franklin	}	Date : March 22, 2020
The Right Move, Inc	}	
Respondent	}	

BEFORE : Honorable Erin M. Wirth , Administrative Law Judge .

Respondent's Proposed Findings of facts.

The respondent finding of facts is separated to 3 parts:

1. Facts by respondent.
2. Answering the finding of facts of the complainant.
3. Madhu Samee case.

The below are the fact that the respondent find relevant to the case.

02/04/2019 I have provided Mr. Rana a quote for door to port service with self-loading Total \$2,595.00

02/05/2019 Mr. Rana accepted the terms and conditions or agreement, for door to port only service.

02/06/2019 I have provided Mr. Rana self-loading instructions, including how to properly write an Inventory list so it can be declared on the BOL.

02/07/2019 I have provided Mr. Rana his Ocean vessel details and schedule.

02/14/2019 Mr. Rana paid his shipping costs.

02/15/2019 Mr. Rana Loaded the container.

03/12 /2019– I requested a proper inventory list, as it was not received yet. Advised the customer that the shipment is due to arrive on April 3rd, and In order for me to share the BOL with him, I need the proper Inventory list and consignee info.

03/25/2019 – Mr. Rana still didn't provide proper details for the BOL, so I sent a reminder.

03/27/2019 – we concluded the Inventory list as Mr. Rana kept adding items to it.

03/28/2019 – Mr. Rana advised that he hired an agent to assist with the custom clearance and the process in Pakistan, and Asked to change the Bill of lading again to reflect that. **–an agent should have been involved much earlier in the process as Custom clearance in Pakistan is no joke.**

03/31/2019 – Mr. Rana started his verbal abuse and threatening because he failed to understand that changing a BOL , especially last minute is out of my hands, and take the SSL few days to process. (Please see **respondent exhibit 5.)**

04/04/2019 Mr. Rana requested additional changes to the Bill of lading, and I have submitted the changes and sent him a house BOL as well to expedite the process. **(please see respondent Exhibit 6 .)**

04/05/2019 – I was informed that the freight was on hold, and It seems as the payment that was submitted was applied towards an old shipment that was still pending.

04/05-09/2019 –I had advised the customer, that he should pay directly at destination , and he has two options, wait few days to be compensated by the company , or file a claim against the company bond (I have provided him with the claim form , the FMC details etc to make sure he understand his options) . I wanted him to know we take full responsibility.

04/10/2019 Mr. Rana confirmed he paid the ocean directly.

04/15/2019 – Follow up E-mail form myself to Mr. Rana to make sure all is going well for him. Exhibit 7.

05/01/2019 – another Follow up E-mail form myself to Mr. Rana to make sure all is going well for him. Exhibit 8.

05/02/2020 – Learning by E-mail, that Mr. Rana submitted a claim with the FMC.

The respondent answers to the complainant finding of facts:

The respondent also chooses to partially reply and ignore most of the complainant “findings” as they are not only ridicules, but they are completely irrelevant to the case or its outcome, and most important are based on the complainant assumptions , rather than actual facts , or knowledge !

7. “The respondent somehow convinced and induce Troy to transport cargo without prepayment “- Complainant has no knowledge what so ever of how the shipping process works, and assume the respondent needed to do something out of the ordinary to get the container to depart, which is obviously nonsense.

10. “ The respondent in bad faith , deliberately mislead and misinformed the complaint about the arrival date “ the respondent provided the complainant with the name of the carrier , and vessel prior to loading (see Exhibit 9) had the complainant or his agent were familiar with basic shipping knowledge they would have known they can track the shipment online, In fact , they should have tracked the shipment online from the beginning considering this was a door to port service only.

28. “The respondent Profited Financially by not paying ocean “ the respondent knew all along her personal responsibility towards that payment , and offered the complaint to claim it against her bond prior to him duplicate paying it. **(Complainant Exhibit 23)**

29. a . “ The respondent in Bad faith – made false statements about her intentions to close the company “ unless the complainant is a mind reader not sure how he will know or not know about my own personal and business intentions ? such statement is absolutely irresponsible and ridiculous! The alleged response was done on August 13, 2019, the respondent provided proof of her intentions **(respondent Exhibits 1 & 2 .)** which are dated earlier.

31. -37 –The complainant try to build a case against the respondent for violating the FMC laws,

The FMC is the body who grant the respondent her license upon proper consideration and fulfilment of all that is needed, including proof of cooperation, bond and tariff. Had the respondent was trying to avoid paying the ocean costs, because her Company is closed and she is protected by her corporation’s laws, she could understand such accusations and maybe willing to cooperate , But since the respondent again and again expresses her personal liability through her bond, it’s irrelevant as the respondent will end up paying it from her personal account! So , not only these assumptions are not true ! they are irrelevant.

44. "The complainant had intended to stay in Karachi for Only 3 days " – in no country in the world you can finish custom clearance in 3 days, not even the super easy ones. How the complainant knew it will take only 3 days? while he doesn't even know what a Bill of lading is (Exhibit 4 bottom part) or that he could track the shipment online all along ?

Madhu Sameer: (Exhibits 10 - 16)

There is so much to say about this case, but in short, Ms. Sameer asked to ship a 40 FT container, and signed an agreement for it in June 2015. Her pick up took 19 hours instead of the normal 8-10 hours, which in the process she cooked lunch /dinner for her kids, went shopping for a printer leaving her 2 minor kids at home with strangers (the movers) and even went to sleep for 5 hours. This resulted in the movers not receiving proper instructions of loading priority and the last few hours of the move, Ms. Sameer asking the movers to unload and load again and again different items that she wanted to take with her, in an attempt to make it all fit .

This Ended up with the movers leaving after 19 hours (at 4 AM after none stop work) and us sending another crew the next day to take the "left Overs" and try and switch with what is already in a super full container. The customer had 5 days window prior to us shipping the container and we asked her to come to our warehouse to be present at time of exchanged., but she never made it . that resulted in us having to return the full container to the port for shipping to avoid detention fees, and the fact that she now has a second shipment in our warehouse which she doesn't want to pay for , needless to say she wanted us to ship it for free, I offered to return it to her house for free, or ship to the port only for free As the costs to me were the same and I wanted to help !

To date I still don't understand her logic, and what exactly happened! Other than the fact Ms. Sameer had no money to pay , and never had any intentions of paying for her shipment .

All I know she refused to pay her contract amount. we asked for the agreed amount only there was nothing different! Regardless to how much we tried to explain to her with the FMC assistance, nothing , she refused to listen to anyone !

I kept offering her that I will pay for a lawyer consolation for her for free, cause she kept saying she has no money.

Time has passed, the container arrived, and the customer had no understanding of what about to happen in terms of storage and demurrage, regardless to how much we tried to warn her.

Since the shipment was consigned to an agent, Ms. Sameer decided to pay the agent directly in order for them to help her in New Zealand. The agent chose to accept her paying, despite my

request to not get involved, and released the shipment even though it was on hold by the steamship line .

At that point, I was letting it all go, I figured if she found a way, I will not stand in her way!

I lost money , a lot of money as I needed to pay the Movers, ocean and trucker , but the time spent was costing even more and I was just ready to put it all behind !

But the universe had different plans for Ms. Sameer ,

Upon collecting her shipment and placing the shipment in their warehouse, the agent occurred port charges, which the customer didn't have money to pay . I only found out all these later on, when on Dec 23, 2017 the agent from New Zealand advised us of Ms. Sameer intentions to sue everyone in the process, SSL , Movers, The Right Move, Insurance company etc.

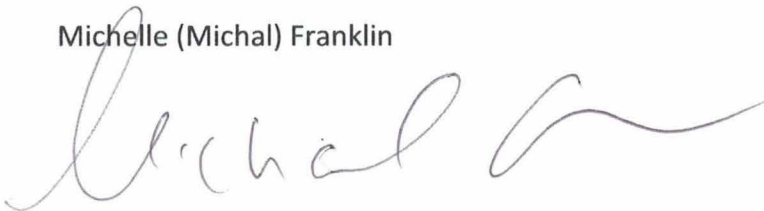
Since we were never properly summoned, we didn't get a chance to be involved, and the case was terminated in May 22, 2018.

Ever since Ms. Sameer who's entire " life" is still in storage in New Zealand somewhere, and can never have access to it unless she fully pay it, is trying all she can, including an insurance fraud.

Needless to say, this person is so hurt and has nothing to lose at this point, so she will go and try to hurt everyone along the way , whether its right or not , its irrelevant.

I find it disturbing that the complainant base some of his accusations on "facts" he found online!

Michelle (Michal) Franklin

A handwritten signature in dark ink, appearing to read 'Michal', followed by a long, horizontal, wavy flourish.